

26STCV05337 26STCV05337

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 26STCV05337 Hearing Date: September 28, 2026 Dept: 617

Dept.

617

Date:

9-28-26

Case

#: 26STCV05337

Trial

Date: None Set

QUASH SERVICE

MOVING

PARTY: Specially Appearing Defendant, Hu Jin

RESPONDING

PARTY: Plaintiff, Vitalii Kim

RELIEF

REQUESTED

Motion

to Quash Service of Summons and Complaint

SUMMARY

OF ACTION

Plaintiff

Vitalii Kim filed the instant negligence action against Defendant Hu Jin following a car accident.

RULING: Denied.

Specially Appearing Defendant Jin moves to quash service of summons, arguing that he was not properly served via substitute service because the person served does not live at his address. Plaintiff opposes the motion, maintaining proper service. Because the evidence presented shows that Defendant was properly served by substitute service, Defendant's motion is denied.

A plaintiff has the initial burden to establish valid statutory service of a summons and complaint. (Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-40; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 794.) The proof of service indicates the process server left a copy of the summons and complaint with a competent member of the household named "Max Doe." [1] The address is identified as 818 Mariposa St. Apt 3, Glendale, CA 91205. Copies of the summons and complaint were thereafter mailed by first-class mail, postage prepaid to Defendant at the same address. A declaration of diligence is also attached showing 4 prior attempts at personal service before substitute service was effected.

"If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing." (Code Civ. Proc., § 415.20, subd. (b).) Service in this context is allowed "upon a person whose 'relationship with the

person to be served makes it more likely than not that they will deliver process to the named party.” (Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1393; see Ellard v. Conway (2001) 94 Cal.App.4th 540, 546, fn. 3.)

The evidence presented shows that substitute service was proper. The proof of service indicates that Max, a Caucasian man in his 30s, was served at Defendant’s address. The sole evidence Defendant submits in support of his motion is a declaration from his counsel based on “information and belief.” This is insufficient. (City of Santa Cruz v. Municipal Court (1989) 49 Cal.3d 74, 87 [affidavits on information and belief permitted where facts “are incapable of positive averment”].) In any event, the stated facts do not show that service was ineffective. Defendant argues that Max is not a “competent member of the household” because he does not live at the address. His counsel states that Defendant is Korean and the only other people living in Defendant’s home are Korean women, and thus they do not match Max’s description. [Nolan Decl. ¶¶ 7-10.] But Defendant presents no reason why Max was unlikely to deliver process to him nor is there evidence that Max was not present at the home at the time of service. (Bein, supra, 6 Cal.App.4th at p. 1393.) Thus, Defendant was properly served via substitute service and his motion to quash is denied.

Defendant to file a responsive document within 10 days of this order.

Defendant to give notice.

[1] Because the proof of service indicates that the process server is exempt from registration, the statutory presumption of proper service created by a return of a registered process server does not apply. (Evid. Code, § 647; Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1427.)